

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/15/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01569
CASE NAME: JAIME CEJA VS. STORAGEPRO, INC., AN UNKNOWN BUSINESS ENTITY
*HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

The Settlement Administrator's declaration shows that the settlement terms have been implemented. The Settlement Administrator is directed to disburse the remaining 5% of attorney's fees to plaintiff's counsel. No further proceedings are contemplated.

2. 9:00 AM CASE NUMBER: C22-02282
CASE NAME: KERSTI PETER VS. KATHERINE BERNSTEIN
HEARING ON SUMMARY MOTION JUDMENT
FILED BY: BERNSTEIN, KATHERINE
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant Katherine Bernstein. For the reasons set forth, the motion is **denied**.

Background

This action arises out of a boundary dispute between neighboring property owners in Orinda. On October 24, 2022, Plaintiffs Kersti Peter and William Peter filed a complaint alleging a single cause of action for trespass against defendant Katherine Bernstein. Plaintiffs allege Bernstein is interfering with Plaintiffs' property "by constructing and maintaining a fence, posts, concrete steps, and other improvements" (the "Bernstein Intrusions") on the Peters' property. (Compl. ¶¶ 1, 2, 4.) Plaintiffs' allege past, present, and continuing injury from the trespass on their land and that the trespass was intentional for which Plaintiffs seek damages as well as injunctive relief against future trespass. (Compl. ¶¶ 6-8 and Prayer ¶ 15.)

Defendant Bernstein now moves for summary judgment, and Plaintiffs oppose the motion.

Legal Standards for Ruling on Defendant's Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The issues to be considered on a motion for summary judgment or summary adjudication are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action."].) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180;

Cohen v. Five Brooks Stable (2008) 159 Cal.App.4th 1476, 1497.) (See also Code Civ. Proc. § 437c(c).) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Procedural Note on Reply Separate Statement

Code of Civil Procedure section 437c(b)(4) states in relevant part, "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Emphasis added.) Defendant filed a "Reply to Response to Separate Statement of Undisputed Material Facts" responding to Plaintiffs' Response to the SS, which is not permitted under the statute.

Analysis

Defendant's motion is supported by Defendant's Separate Statement ("SS") of Undisputed Material Facts ("UMFs") and the declarations of Gary Boeder, Gary Bryson, and Bernstein's counsel Alison Crane. Plaintiffs filed their Response to the SS, which lists six of the 11 UMFs as undisputed, and includes two additional material facts ("AMFs") which Plaintiffs contend, along with their disputed UMFs, preclude granting summary judgment for Bernstein.

A. Undisputed Material Facts

The parties do not dispute that in 1974, Gary Boeder and Gary Bryson co-owned a single parcel of property in Orinda that they agreed to subdivide in 1979 into "Parcel A" which became the property located at 209 Camino Pablo, now owned by Bernstein (also referred to herein as the "Bernstein Property"), and "Parcel B" which became the property located at 23 North Lane, now owned by Plaintiffs and also referred to herein as the "Peter Parcel." (UMF Nos. 1, 2; Compl. ¶¶ 1, 2.) In July 1983, Kersti Peter's grandparents, the Johnsons, purchased Parcel B, the Peter Parcel. (UMF No. 7.) The Peter Parcel was transferred to Kersti Peter's mother through a family trust, and in December 2012, Plaintiffs purchased the Peter Parcel from Kersti Peter's mother. (UMF Nos. 7-9.) It is also undisputed that Gary Boeder and Gary Bryson built a fence between Parcel A and Parcel B between 1980 and 1982 which has remained in the current location since it was constructed in that two-year time frame. (UMF No. 10.)

B. UMFs Listed as Disputed by Plaintiffs and Plaintiffs' AMFs

Based on declarations by Boeder and Bryson that they were "uncertain" of the boundary line when they subdivided the two parcels, Bernstein contends Boeder and Bryson agreed that the boundary line between the two properties would be the line where an old, dilapidated fence existed which they replaced when they erected the fencing between 1980 and 1982. (UMF Nos. 3, 4, 5.) Plaintiffs dispute these UMFs. They contend there was no uncertainty regarding the boundary line after the parcel map subdividing the two properties was recorded in 1979. (Resp. to UMF Nos. 3, 4.) Plaintiffs dispute that any agreement was made to fix the boundary line or that the purpose of any agreement regarding the fencing was to fix an uncertain boundary line. (Resp. to UMF No. 5.)

Though they do not dispute that Gary Bryson lived at the Peter Parcel until 1983 and the fencing remained at its current location after it was erected between 1980 and 1982 (UMF Nos. 6, 10), Plaintiffs dispute that Bryson "accepted" the fenced as the fixed agreed boundary. (Resp. to UMF No.

6.) Plaintiffs also dispute that the members of the Peter family who have lived at the Peter Parcel from 1983-2013 "acquiesced" in the boundary line fixed by the fence between the parcels, as Plaintiffs contend the prior owners did not know the fence was not on the "true" boundary line, and at most had "constructive notice" of the true boundary based on the recorded parcel map subdividing the parcels. (UMF No. 11 and Resp. to UMF No. 11.)

Plaintiffs also raise AMFs, in which they contend the "first" agreement regarding a boundary line between the parcels was made before the 1979 subdivision of the parcels and recording of the parcel map. (AMF No. 12.) They assert Boeder and Bryson, who subdivided the property, did not "preserve" the fence line as the boundary of the parcels because they subsequently recorded the parcel map setting forth the "certain" true boundary between the subdivided parcels. (AMF No. 13.)

C. Legal Framework: Trespass and the Agreed Boundary Doctrine

The elements of a trespass claim are: "(1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (See CACI No. 2000.)" (*Ralphs Grocery Co. v. Victory Consultants, Inc.*, *supra*, 17 Cal.App.5th at 262 [emphasis added].) Defendant' relies on her assertion of the agreed boundary doctrine as a defense to negate Plaintiffs' trespass claim because under that doctrine, the former owners of the adjoining parcels agreed that the boundary line of the properties would be where the current fencing is located.

"The agreed boundary doctrine constitutes a firmly established exception to the general rule that accords determinative legal effect to the description of land contained in a deed." (*Bryant v. Blevins* (1994) 9 Cal.4th 47, 54.) The California Supreme Court in *Bryant* reaffirmed "the vitality of the requirements necessary to establish the applicability of the agreed-boundary doctrine, set forth in *Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702." (*Id.*) The requirements of the agreed-boundary doctrine stated in *Ernie* are "that there be an uncertainty as to the true boundary line, an agreement between the coterminous owners fixing the line, and acceptance and acquiescence in the line so fixed for a period equal to the statute of limitations or under such circumstances that substantial loss would be caused by a change of its position." (*Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702, 707.)

The Court in *Bryant* also declined "to limit application of the agreed-boundary doctrine to instances in which existing legal records are inadequate to settle a boundary dispute," explaining that "such an inflexible rule would risk destabilizing long-standing agreements--made in good faith by coterminous property owners in order to resolve uncertainty as to the location of their common boundaries--that might, for any one of several reasons, be at variance with legal property descriptions or survey results." (*Bryant, supra*, 9 Cal.4th at 54 [emphasis added].) (*See also Ernie, supra*, 51 Cal.2d at 707-708 ["It is not required that the true location be absolutely unascertainable [citation omitted]; that an accurate survey from the calls in the deed is possible [citation omitted], or that the uncertainty should appear from the deeds [citation omitted]. The line may be founded on a mistake. [Citation omitted.]"].)

The agreed boundary doctrine "arose as a way to settle disputes over boundaries in an earlier time, when surveys were notoriously inaccurate and the monuments and landmarks they described could

not be located. In more recent times, however, accurate surveys and verifiable recorded deeds are the rule. [Citation omitted.]" (*Mehdizadeh v. Mincer* (1996) 46 Cal.App.4th 1296, 1304.) The Court in *Mesnick v. Caton* (1986) 183 Cal. App. 3d 1248, cited by defendant, expounded on the proper application of the doctrine: "The doctrine of agreed boundaries should most plausibly come into play when legal records fail to settle a boundary dispute. That failure may occur when records never existed, have been destroyed, or are inaccurate, or when the natural features or surveyors' monuments or corners have changed or vanished. [Citations omitted.] Where no reliable legal description exists, the courts have resort to the agreed boundary doctrine. It is better than nothing. But the law should not employ a residual doctrine, a last legal resort, to dispossess an owner of his land when a legal means of establishing an accurate boundary lies quite readily and conveniently to hand." (*Id.* at 1256-1257.)

Courts have drawn some clear lines in applying the doctrine, for example, drawing a distinction between adjoining property owners making an agreement to resolve a dispute over the location of the true boundary line, a circumstance in which the doctrine applies, and the parties merely agreeing on the location of fencing or parties acquiescing in the location of fencing between properties over a long period of time, where the doctrine does not apply. (*See, e.g., Allen v. McMillion* (1978) 82 Cal.App.3d 211, 215 [parties agreed on fence location for convenience, not to resolve a dispute over boundary location; agreed boundary doctrine not satisfied]; *Mehdizadeh, supra*, 46 Cal.App.4th at 1303-1304 [parties acquiesced in location of fence over a long period; agreed boundary doctrine not satisfied]; *Martin v. Lopes* (1946) 28 Cal.2d 618, 625 [assumption by an owner that fence marks the boundary insufficient to apply agreed boundary doctrine]; *Moniz v. Perlman* (1934) 220 Cal. 429, 435 [stating "It is, of course, true that the acquiescence must consist in acquiescence in the fence as a boundary line and not mere acquiescence in the existence of the fence as a barrier," but finding evidence sufficient to support agreed boundary where original owners in 1908 hired surveyor and parties jointly built fencing agreed as the property line from survey stakes marking corner boundary, and well and pump were built based on that boundary].)

Courts in practice have applied the doctrine "somewhat inconsistently." (*Mesnick, supra*, 183 Cal.App.3d at 1257 [citing *Zachery v. McWilliams* (1972) 28 Cal.App.3d 57, 61].) Defendant, for example, cites cases in which the two property owners have been mistaken about the location of the boundary line possibly because of a surveyor's mistake in marking the property with survey posts (*see, e.g., Silva v. Azevedo* (1918) 178 Cal. 495) or because of conflicts in recorded surveys followed by erection of substantial, permanent improvement based on the boundary line believed by the property owners to be the true line (*see, e.g., Ernie, supra*, 51 Cal.2d at 708-709; *Moniz, supra*, 220 Cal. at 435).

But more recently, relying on the Court's statements in *Bryant* and decisions cited with approval by the Court in *Bryant*, the Court in *Martin v. Van Bergen* found the agreed boundary doctrine did not apply in part because there was no uncertainty regarding the true boundary line as it could be ascertained from the recorded surveys and deeds: "*Bryant* requires 'deference to the sanctity of true and accurate legal descriptions.' [Citation omitted.] Thus, a boundary is not uncertain if it can be ascertained by an accurate survey." (*Martin, supra*, 209 Cal.App.4th at 90.) (*See also Armitage v. Decker* (1990) 218 Cal.App.3d 887 [discussed with approval in *Bryant, supra*, 9 Cal.4th at 57 and in *Martin, supra*, 209 Cal.App.4th at 89, stating the agreed boundary doctrine could not be used to "supersede recorded legal descriptions of the property where, as here, they are fully consistent"

because application of the doctrine in that circumstance "would not only destroy the significance of recorded instruments but would foster litigation rather than preventing it," but the Court also noted there was no "direct proof" that the fence in that case had been built to resolve the adjoining landowners' uncertainty regarding the boundary].)

D. Application to the Motion – Failure to Meet Initial Burden

The issues on a motion for summary judgment are defined by the pleadings, in particular the allegations of the operative complaint. (*Doe, supra*, 23 Cal.App.5th at 661; *Teselle, supra*, 173 Cal.App.4th at 161.) The Complaint alleges a claim for trespass on Plaintiffs' property based on Defendant's placing a "fence, posts, concrete steps, and other improvements" on Plaintiffs' property. (Compl. ¶ 4.)

The only evidence presented by Defendant in support of the motion addresses the location of a fence between the two properties, which declarants Bryson and Boeder declare they accepted as the property line dividing Parcel A and Parcel B. Defendant has submitted no evidence negating that Bernstein constructed and maintained "posts, concrete steps, and other improvements" on Plaintiffs' property (Compl. ¶ 4), whether the property is defined by the recorded Parcel Map or based on the location of the fence which Bernstein contends is the true, agreed boundary line. Defendant appears to assume either that the fence is the only encroachment alleged, or that the Court should assume, without evidence, that any "posts, concrete steps, and other improvements" do not extend beyond the fence onto Plaintiffs' property. The Court cannot rely on an assumption without evidence in the record to support this fact essential to demonstrating Defendant has a complete defense to the trespass claim.

The motion for summary judgment is **denied** on this ground.

E. Application to the Motion – Agreed Boundary Doctrine

Even if the Court could somehow accept the assumption that the "Bernstein Intrusions" are all located on the side of the fence next to the Bernstein property (Parcel A), the Court finds there are triable issues of fact that preclude summary judgment regarding the application of the agreed boundary doctrine under the circumstances. The evidence is undisputed that there was "dilapidated" fence located on the portion of the properties where the current fencing is installed that necessarily existed before the fencing was replaced between 1980 and 1982 by the two adjoining property owners after the parcel map was recorded. (UMF No. 10.) But under the authorities discussed above, an agreement on the location of fencing between adjoining property owners is not the same as an agreement to locate the boundary line where the fencing is installed in order to resolve uncertainty or a dispute over the true property boundary line.

The evidence in the Bryson and Boeder Declarations that they were each "uncertain" where the boundary line for the parcels was located and that Boeder and Bryson agreed to fix the boundary where the "old dilapidated fence" was located is ambiguous as to time and meaning, even if the statements are admissible evidence. (See Evid. Obj. addressed below.) They each declare they were uncertain "[w]hen subdividing the Parcel in 1979." (Bryson Decl. ¶ 4; Boeder Decl. ¶ 4 [emphasis added].) They do not declare that there was any uncertainty as to the location of the boundary line after they subdivided the property, executed the Parcel Map and recorded it. They also do not declare they erected the fence between 1980 and 1982, after the Parcel Map was recorded, in order

to fix an uncertain but agreed boundary line. (Boeder Decl. ¶ 6; Bryson Decl. ¶ 6.) The Court is required to strictly construe evidence offered by the party moving for summary judgment in ruling on the motion. (*D'Amico, supra*, 11 Cal.3d at 20; *Johnson, supra*, 43 Cal.4th at 64.)

Even if the evidence in support of the motion were sufficient to meet Bernstein's initial burden on the motion, supporting an inference that the uncertainty regarding the location of the property line extended after Bryson and Boeder surveyed the property, developed, agreed to and then recorded the Parcel Map and was resolved by agreement by them jointly erecting the fencing where the old fence was located, Plaintiffs have met their burden to raise triable issues of fact in opposition to the motion. First, the Bryson deposition testimony raises potential triable issues regarding when Bryson and Boeder were "uncertain" about the location of the boundary line and whether they in fact resolved the uncertainty by their agreement to and recordation of the Parcel Map which set the boundary between Parcel A and Parcel B. (Pl. Evid. Exh. 16 [Bryson Depo. 22:19-24:10, 30:20-31:5].)

There are at least conflicting inferences that can be drawn from Bryson's deposition testimony, one of which would make the agreed boundary doctrine inapplicable. Specifically, the testimony could support an inference that the property owners' uncertainty existed regarding the boundary before they obtained a formal survey and agreed to execute and record the Parcel Map, that the agreed, executed Parcel Map resolved the uncertainty regarding the boundary by setting the true legal boundaries for the parcels in the recorded Parcel Map which they agreed to when they executed and recorded the Parcel Map, and that the parties merely acquiesced in maintaining the fencing in its existing location when they constructed it in 1980-1982 as a matter of convenience. Boeder's deposition testimony indicates that the new fence was erected to replace the old dilapidated fence between 1980 and 1982 and that he and Bryson agreed to locate the new fence where the old fence was, but not specifically in order to fix the property line between the parcels at the location of the fence because they were uncertain about the true boundary line. (Pl. Evid. Exh. 8 [Boeder Depo. 18:13-18, 19:1-3].) Bryson's deposition testimony indicates the uncertainty about the boundary line that existed before the Parcel Map was agreed on and recorded, but that the new fence in 1980-1982 was merely built to replace the old one, not based on an agreement to establish the property line there because there was still "uncertainty" about the true boundary. (Pl. Evid. Exh. 16 [Bryson Depo. 22:19-24:10, 30:20-31:5].)

Acquiescence in the location of fencing between properties is not the same as resolving uncertainty regarding the property line by the parties' agreeing to establish the property line where the fencing was located. (*See, e.g., Bryant, supra*, 9 Cal.4th at 58 [reversing Court of Appeal, where there was no evidence the original barbed wire fence dividing a lot "was erected to resolve uncertainty as to the location of the property boundary," and presence of later erected fence was acquiesced in over a long term was not enough as there had to be "uncertainty as to the location of the true boundary when the fence was erected, and an agreement between the neighboring property owners to employ the location of the fence as the means of establishing the boundary." (Emphasis added.)]; *Martin, supra*, 209 Cal.App.4th at 89-90; *Mesnick, supra*, 183 Cal.App.3d at 215.) (*Compare to Moniz, supra*, 220 Cal. at 430-435 [uncertainty of boundary was shown by original owners finding it necessary to hire a surveyor, surveyor placing survey stakes at corner of boundary location, and owners jointly building fence to mark the property boundary line from the survey stakes, and owners agreeing and relying on the survey stakes and jointly built fencing to be the true boundary line of the properties from 1908

forward until the new property owner in 1930].)

Second, Plaintiffs' opposition evidence at least raises a triable issue of fact as to the issue of "uncertainty" regarding boundary line since the Parcel Map was executed and recorded by Boeder and Bryson. The evidence arguably could support a finding that there was no uncertainty regarding the location of the property boundary line once the original owners decided to agree on and record the Parcel Map based on the real property records and multiple surveys commissioned by both of the adjoining landowners, all of which locate the boundary line in the same place as the boundary line on the Parcel Map and show the fencing is located in part on the Peter Parcel. (Pl. Evid. Exh. 3 [W. Peter Decl. ¶ 3], Exh. 10 [Parcel Map, see also Pl. Evid. Exh. 8, Boeder Depo. 10:14-12:1], Exh. 11 [Lins Depo. 12:6-9, 13:23-14:1, 16:7-15, Lins Depo. Exh. 4] and Exh. 13 [same as Lins Depo. Exh. 4].)

Third, there are, at a minimum, conflicting inferences to be drawn from evidence of the property owners' communications after Plaintiffs acquired the Peter Parcel. Bernstein's email of September 2021, apparently drafted by her husband Boeder, proposes that a new survey be prepared and paid for by both parties "and we use the present fence line as the actual property line for the purposes of the survey line between our two properties," following a discussion of the location of the fence in relation to Plaintiffs' trees and the setback requirements that limit where structures could be built. (Pl. Evid. Exh. 9, see W. Peter Decl. ¶ 12]; Exh. 8 [Boeder Depo. 47:11-14 and Boeder Depo. Exh. 8 [acknowledging Boeder sent the email, Exh. 8].) The language supports a reasonable inference that Bernstein and Boeder were making a proposal on where to locate the property line, not declaring that the fence was the true boundary line based on a boundary line agreed to decades earlier by predecessor owners. The fact that neither Bernstein nor Boeder ever informed the Peters there was an agreed boundary line where the fence was located, even after the Peters obtained a survey and raised disputes about the fence being on their property raises triable issues as to the existence of an agreed boundary. (See Pl. Evid. Exh. 8 [Boeder Depo. p. 23:12-18; 23:25-24:3]; K. Peter Decl. ¶ 4; W. Peter Decl. ¶¶ 4-12, 14.)

Almost all of the cases cited by the parties in their briefing were decided on a full evidentiary record in a trial. (See *Bryant, supra*, 9 Cal.4th 47; *Ernie, supra*, 51 Cal.2d 702; *Martin, supra*, 209 Cal.App.4th 84; *Kunza v. Gaskell* (1979) 91 Cal.App.3d 201; *Moniz, supra*, 220 Cal. 429.) (See also *Armitage, supra*, 218 Cal.App.3d at 903 [judgment after jury trial].) One exception is *Allen v. McMillion, supra*, in which the Court affirmed summary judgment for the defendant on two causes of action for quiet title and declaratory relief because the applied boundary doctrine did not apply based on uncontested evidence showed there was no agreement to fix the boundary line between the properties at the location of the fence, but the Court reversed summary judgment for defendant on the trespass cause of action. (*Allen, supra*, 82 Cal.App.3d at 215, 218-219.) *Mesnick v. Caton, supra*, 183 Cal.App.3d 1248 was decided after a nonjury trial following the trial court's denial of a motion for summary judgment on the ground there were triable issues of fact as to whether there was uncertainty regarding the boundary and whether the original landowners intended the fence to be an agreed boundary. (*Id.* at 1253-1254.)

The Court in *Mesnick v. Caton, supra*, 183 Cal.App.3d 1248, found that the evidence fell short of demonstrating uncertainty for the application of the agreed boundary doctrine. It cited and relied on the decision *Finley v. Yuba County Water Dist.* (1979) 99 Cal.App.3d 691, finding the "acute analysis" in that case to be "a more contemporary and persuasive statement of how and when to use this

doctrine." (*Id.* at 1257.) The Court stated that the agreed boundary doctrine " 'is not intended to subvert neighborliness or prudence whereby a neighbor allows another to use part of his land for the neighbor's (or their mutual) benefit, and this concept grows in importance as we progressively become a more congested society. [para.] Therefore, the mere fact that a landowner allows his neighbor to occupy or use part of his land does not automatically fix the boundary between them or give the neighbor a right to use or take the property in perpetuity. The doctrine rightfully rests on the intent of the parties, and determining such intent is the province of the trier of fact.' " (*Mesnick, supra*, 183 Cal.App.3d at 1257 [quoting *Finley, supra*, 99 Cal.App.3d at 700].)

The Court also rejects Defendant's position that the only relevant evidence for assessing whether the agreed boundary doctrine applies is what transpired in 1979, apparently whatever Boeder and Bryson state in their declarations they believed "[w]hen [they were] subdividing the Parcel in 1979." (Bryson Decl. ¶ 4; Boeder Decl. ¶ 4.) Evidence of subsequent events, statements, and conduct of the property owners, including Boeder who apparently does not own the Bernstein Property but has lived there since 1981 and was one of the subdividers, is relevant to assessing whether and what "uncertainty" existed regarding the boundary, the nature of any agreement regarding the location of the fence, and the existence of any agreement to establish a boundary different from that set forth in the recorded Parcel Map.

The motion for summary judgment is also **denied** on these grounds. There are triable issues of fact as to whether there was uncertainty regarding the true boundary line between the properties within the meaning of the case law construing the agreed boundary doctrine and whether there was an agreed by the prior property owners to resolve the uncertainty by establishing the true boundary line at the location of the fence.

Evidentiary Objections

The Court rules on those evidentiary objections which the Court deems to be material to the determination of the motion pursuant to Code of Civil Procedure section 437c(q).

A. Plaintiffs' Evidentiary Objections

Obj. Nos. 1, 2 – **Overruled**. The statement that each of the declarants was "uncertain" about the boundary line may be considered an evidentiary fact regarding each declarant's state of mind at the time of the event described. Notably, the declarants do not state that the boundary was uncertain, which might be an ultimate fact or conclusion. (*Compare to Knox v. Dean* (2012) 205 Cal. App. 4th 417, 432 ["Dean's statement that he 'carefully monitored' Blaine's health and provided for '[n]ecessary doctor appointments' are merely assertions of ultimate fact, and as such, were insufficient to support summary judgment in his favor."].)

B. Defendant's Objections to Plaintiffs' Evidence

Obj. Nos. 1-3 – **Overruled**.

Obj. Nos. 4, 5 – **Sustained in part, overruled in part**. The relevance objections are overruled. The hearsay objections are sustained to the extent that the letters are offered to prove the truth of factual statements in the letters, primarily that the fence is on Plaintiffs' property and encroaching, but they are admitted for the limited purpose that Plaintiffs asserted their position regarding the

alleged encroachment of the fence and disputed the fence's location.

Obj. Nos. 7-9 – **Overruled.**

3. 9:00 AM CASE NUMBER: C23-01240

CASE NAME: FERNANDO RAMOS VS. DONALD CHAIKEN

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION & PAGA CLAIMS**

FILED BY:

TENTATIVE RULING:

Plaintiffs Fernando Ramos and Kevin Nikaido move for final approval of their class action and PAGA settlements with defendants Davidon Homes, Davidon Corporation, and Donald Chaiken. It will resolve Nikaido v. Apartment Management Consultants LLC (C24-00721), Nikaido v. Apartment Management Consultants LLC (C24-01530) and Ramos v. Davidon Homes (C23-01240).

A. Background and Settlement Terms

The original complaint was filed by Mr. Ramos on May 24, 2023, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A class action complaint making similar claims was filed by Mr. Nikaido on May 19, 2024. Nikaido filed a PAGA complaint on June 12, 2024. The operative pleading is the Amended Complaint in this matter, which was filed April 2, 2025, after the settlement had been reached.

The settlement would create a gross settlement fund of \$900,000. The class representative payment to plaintiff would be up to \$5,000 for each plaintiff (\$10,000 total). Attorney's fees would be \$300,000 (one-third of the settlement). Litigation costs would not exceed \$40,000. The settlement administrator's costs would not exceed \$10,000. PAGA penalties would be \$45,000, resulting in a payment of \$33,750 to the LWDA and \$11,250 to plaintiffs. The net amount paid directly to the class members would be about \$495,000. The fund is non-reversionary. Based on the estimated class size of 209, the average net payment for each class member is approximately \$2,368.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the "State of California's Unpaid Wage Fund" (more commonly known as the State